

Bechoo Ram v. State of U.P.

Allahabad High Court · Division Bench · 3 September 2021 · WRIT - C No. 19683 of 2021 · WRIT - C No. 19683 of 2021 · **Writ disposed; liberty to object under Clause 8.1.**

HEADNOTE

A writ seeking quashing of a provisional electricity bill is not decided on merits. Against such a bill the consumer may take an objection under Clause 8.1 of the U.P. Electricity Supply Code, 2005. The petition was disposed of with liberty to take that alternative statutory remedy.

FACTUAL SUMMARY

Bechoo Ram @ Bechoo filed Writ-C No. 19683 of 2021 in the Allahabad High Court seeking quashing of a provisional electricity bill dated 29 January 2021. The State of Uttar Pradesh and three others were respondents. Pradeep Kumar Dwivedi appeared for the petitioner and Chetan Chatterjee for the respondents. The one-page order records no further facts about the connection, the assessment, or any alleged unauthorized use. A Division Bench of Manoj Misra and Jayant Banerji, JJ. heard the petition on 3 September 2021.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::8.1

objection to provisional bill

HOLDING

A writ seeking quashing of a provisional electricity bill is disposed of because the consumer may take an objection to that bill under Clause 8.1 of the U.P. Electricity Supply Code, 2005, and is left to that alternative statutory remedy. ¶ 1

PRINCIPLE TAGS

theft-recovery-writ-not-entertainable-s126-clause-8.1

The Court declined to quash the provisional bill in writ and left the petitioner to the Clause 8.1 objection. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE PROVISIONAL BILL DATED 29.1.2021

Not examined on merits; petitioner relegated to the Clause 8.1 objection. ¶ 1